THE STATE

Versus

PRAYER MPOFU

AND

GAMELIHLE NDLOVU

IN THE HIGH COURT OF ZIMBABWE
KABASA J with Assessors J. Ndubiwa and J. Zulu
HWANGE 4 AND 5 MARCH 2026

Criminal trial

M Munsaka, for the state
C Muleza, for the accused

KABASA J: The two accused appeared before us charged with murder as defined in s47 (1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. They pleaded not guilty.

The state alleges that on 27 May 2025 the accused and one Edwell Mpofu who is yet to be arrested, had a misunderstanding with the now deceased who had accused them of stealing his goats. The three went to the now deceased's home around 2100hours and force-marched him to Edwell's home where they took turns to assault him leading to his death.

In denying the charge accused 1 explained that he only intervened to stop the fight between the now deceased and Edwell. He left for his homestead when the physical confrontation had subsided. The following day he went back to Edwell's home and was then informed of the now deceased's death. Edwell then forced him to help bury the body in a shallow grave and he complied after he had been threatened.

As for accused 2 he explained that Edwell gave him a knobkerrie which was meant to stop the now deceased from fleeing. Edwell assaulted the now deceased with a sjambok and stabbed him twice on the head with a knife. After accused 2 realized that the now deceased may be dead he fled from the scene, confided in one Sibusisiwe as to what had happened before fleeing to Bulawayo.

To prove its case, the state produced both accused's confirmed warned and cautioned statements, the postmortem report, the knobkerrie, the knife and the sjambok. The evidence of five witnesses was admitted in terms of s314 of the Criminal Procedure and Evidence Act [Chapter 9:07]. With that the state closed its case.

The accused gave evidence in their defence and put the blame on Edwell who they said coerced them into participating in the assault and disposing of the body.

The state evidence was largely common cause. No one witnessed the assault. All the witnesses whose evidence was admitted merely established how it was discovered that the now deceased had been killed and how the two accused were arrested.

The 2 accused's warned and cautioned statements gave some insight on how the deceased met his death and the circumstances surrounding the burying of the body at Edwell's homestead.

Accused 1 had this to say:

> "I am pleading guilty to the allegations levelled against me that I caused the death of the now deceased. Edwell sent Gamalihle and I to collect the late at his homestead at around 2130hours. We then arrived at his homestead, we informed the now deceased that Edwell was looking for him. He agreed and we proceed together (sic). Upon arrival at Edwell's homestead, Edwell quizzed him why he was spreading rumours that we are "stealing and eating goats". As the late was giving an explanation, Edwell took a sjambok that was on top of the table. Simultaneously he struck the now late on his back and questioned him. I assaulted the now late three times on his buttocks with the same sjambok. Edwell took the sjambok from me and used it to further assault the now late several times all over his body. Gamelihle also assaulted the now late several times with a sjambok. Gamelihle later pulled a knobkerrie which was close to him and that is when I exited the house and proceeded to my homestead. I returned to the hut where we had been assaulting the now late the following morning. Upon arrival found the now late lying and Edwell informed me that he was dead. Edwell stated that we were to bury him in his field at sunset but I told him that I would be unable to do so and he decided to dig the grave on his own. At sunset Edwell proceeded to dig a grave in the field inside his homestead. Afterwards I and Edwell assisted each other to carry the corpse of the now late. I held the lower part of his body whilst Edwell held the upper part of the body. We took the corpse to the newly dug grave and thereafter he sat alight the corpse (sic). Thereafter we completely covered the grave and returned home. Edwell warned me not to disclose what had transpired to anyone."

Accused 2's warned and cautioned statement confirmed that it was him and accused 1 who went to fetch the now deceased from his home. He however said they force-marched him to Edwell's homestead. Whilst there Edwell produced a sjambok and he picked a knobkerrie. He manned the door to stop the now deceased from fleeing. Edwell and accused 1 took turns to assault the now deceased several times all over the body. Accused 1 then exited the hut whilst he remained with Edwell and the now deceased. He assaulted the now deceased twice on the stomach using the knobkerrie when he attempted to escape and that forced him to go back into the hut. Edwell proceeded to further assault him as he lay prostrate on the ground. The deceased then lay still and stopped ducking the blows whereupon Edwell stabbed him twice on the head with a knife. Accused 2 realized that deceased might have died as he fell silent. That is when he fled and confessed to Sibusisiwe what had happened and that the deceased could be dead. He later fled to Bulawayo.

The issues to be resolved are three-fold. These are:

1) The evidential import of the accused's confessions

2) The veracity of the defence of compulsion and

3) The issue of common purpose, whether the doctrine of common purpose applies given the accused's explanations.

We will deal with each issue in turn.

In *S* v *Ndlovu & Anor* S 134 – 04 GWAUNZA JA (as she then was) referred to the case of *S* v *Tsorayi* 1985 (1) ZLR 138 (H) where the court quoted with approved from *R* v *Sylees* (193) 8 CR App R on the correct approach to adopt when dealing with confessions.

> "The first question you ask when examining the confession of a man is, is there anything outside it to show it was true? Is it corroborated? Are the statements made in fact true? Is it consistent with other facts which have been ascertained and which, in the case, (are) proved before us."

The postmortem report noted the following marks of violence:

1. Blunt abdominal trauma (perforating wound on the inferior side of the abdomen with intestines protruding) present signs of black smoke inhalation (in the trachea and lungs) organs in autolysis process.

2. Body in decomposition state, burnt and covered by mud.

The pathologist gave the cause of death as assault. Accused 2 stated that he used a knobkerrie to assault the deceased on his stomach. The knobkerrie's length is 88cm, circumference of the head – 25cm, circumference of the handle – 6cm and the weight 240g. Just looking at the head and imagining such a head being used to hit a human being in a stomach was in itself frightening and the harm done as shown in the postmortem report confirms accused 2's statement.

Accused 1 also mentioned the assault where each of them took part using a sjambok and knobkerrie. He also mentioned the fact that he and Edwell set the body on fire before completely covering it. The pathologist observed that the body was burnt and covered in mud.

There is therefore evidence outside the confessions showing the confessions are true and corroborated as the body was found in a shallow grave and burnt. The trauma to the body proved the assault the deceased was subjected to.

These were confessions by people who knew exactly what happened, which confessions were shown to be a true account of the incident.

Accused 2 made the same confession to Sibusisiwe soon after the event as he looked for money so he could flee.

We turn mow to the suggestion by both accused that they were coerced by Edwell.

When they went to fetch the now deceased from his home they were just the two of them. Accused 2 said they actually force marched him to Edwell's home and when Edwell quizzed him concerning the theft rumours the deceased was accused of spreading, accused 1 said Edwell asked him why he was spreading rumours that "we are stealing and eating goats."

These statements put paid to the suggestion that they did not know why they were taking the deceased to Edwell's home. They knew and that is why they force marched him there and the collective "we are stealing and eating goats" denoted all three of them were unhappy with the now deceased. But for the two of them, the deceased would not have gone to Edwell's home where he met his death.

Accused 2 in his statement said he picked up the knobkerrie not that it was foisted on him by Edwell. He stood guard and assaulted the now deceased when he attempted to flee.

Accused 1 said he also assaulted him at the time the deceased appeared to be overpowering Edwell. He was clearly assisting Edwell so he could get the upper hand. Each one of them left when they wanted to and there is no suggestion that Edwell tried to stop them. Accused 2 left when he believed deceased was dead. Why did he not leave earlier, even before the assault? Equally for accused 1 why did he not leave earlier?

Section 243 of the Criminal Code provides that:

> "(1) Subject to this part, the fact that a person accused of a crime was subjected to compulsion when the person did or omitted to do anything that is an essential element of the crime shall be a complete defence to the charge if:
>
> (a) the compulsion consisted of a threat –
>
> (i) unlawfully to kill him or her or cause him or her serious bodily injury or to kill or cause serious bodily injury to some other person: or
>
> (ii) unlawfully to cause him or her financial or proprietary loss and
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> (b) he or she believed on reasonable grounds that implementation of the threat referred to in paragraph (a)
>
> (c) had begun or was imminent and
>
> (d) the threat referred to in paragraph (a) was not brought about through his or her own fault: and
>
> (e) he or she believed on reasonable grounds that he or she could not escape from or resist the threat referred to in paragraph (a) and that his or her conduct was necessary to avert the implementation of the threat and
>
> (f) by his or her conduct he or she did no more harm than was reasonably necessary to avert the implementation of the threat referred to in paragraph (a) and no more than was unlawfully threatened."

In casu accused 1 said he went outside to cook whilst deceased was being interrogated.

However he went into the hut voluntarily and when he left no one stopped him. The following day he went back to Edwell's home in the morning and was there until evening when he assisted to carry the body to the shallow grave, collected grass, burnt it and then covered it. Asked why he stayed at this home all that time he said he had "lost power" on learning of deceased's death. He lost power the whole day and miraculously regained strength for the purpose of burying and burning the body?

Accused 2 decided to leave and no one stopped him. They both fled to Bulawayo until their arrest.

What compulsion was there in the circumstances? They could not even say with clarity what it is they thought would happen to them and if indeed they were scared of Edwell they had ample opportunity to leave but did not.

None of the requirements for the defence of compulsion were met. It became evident that Edwell became the fall guy and conveniently so because he is yet to be accounted for.

As regards their participation, S 196 A of the Criminal Law Code provides that:-

> "(1) If two or more persons accused of committing a crime in association with each other and the state adduces evidence to show that each of them had the requisite *mens rea* to commit the crime whether by virtue of having the intention to commit it or the knowledge that it would be committed, or the realization of a real risk or possibility that a crime of the kind in question would be committed, then they may be convicted as co-perpetrators, in which event the conduct of the actual perpetrator (even if none of them is identified as the actual perpetrator) shall be deemed also to be the conduct of every co-perpetrator, whether or not the conduct of the co-perpetrator contributed directly in any way to the commission of the crime by the actual perpetrator."

Accused 1 gave an account which showed he was there from the start and heard all that Edwell was saying including the assault. He too assaulted the deceased. He never dissociated himself from what was happening.

Accused 2 was equally there from the start and ensured the deceased did not flee. None of them dissociated themselves from what was happening.

The now deceased was mortally wounded when accused 2 decided to leave. Accused 1 came back and assisted in disposing of the body in circumstances which showed complicity and a culmination of the actions which had commenced the night before. Why go to a person's home so late at night when no one was still up and about to see what was happening if not because they knew what was going to happen?

It matters not who inflicted the fatal blow they are all equally responsible for the deceased's death. We are not doctors but he probably breathed his last after he was buried for how else can one explain the "present signs of black smoke inhalation" in the trachea and lungs. A dead body does not breathe for it to inhale black smoke.

The sustained assault with the sjambok, knobkerrie and eventually knife took the deceased's life. The accused must have realized that there was a real risk or possibility that their conduct may cause death but continued nonetheless.

Accused 2 described how the deceased eventually lay motionless, no longer trying to block the blows. This was an indication of how severe the assault was and when we consider that it was 3 people assaulting one helpless individual, it becomes clear that they did appreciate a life could be lost but were not concerned.

We therefore had no hesitation in dismissing the 2 accused's story which was improbable and beyond doubt false and accordingly find them both guilty as charged.

Sentence

You are aged 26 and 31 years old respectively. You are both first offenders. Accused 1 you are not married but have a 3 year old child. Accused 2 you are married with 2 minor children, aged 6 and 2.

You contributed a total of 6 head of cattle to pay compensation to the deceased family.

In aggravation is the fact that you had to force-march the deceased from the sanctuary of his home around 2130 hours. You used the cover of darkness to cover your nefarious activities. You took turns to assault him using an assortment of weapons, a knobkerrie, knife and sjambok.

The sustained assault was perpetrated on a hapless young man who you accused of spreading rumours to the effect that you were stealing goats. You showed complete disregard for his bodily integrity by indiscriminately assaulting him. You sought to conceal the offence by trying to burn the body and buried it in a shallow grave.

The presence of black smoke inhalation is indicative of the fact that he was still clinging to life when he was burnt and buried in a shallow grave. Such callousness is to be deplored.

You did not render any assistance to the deceased but decided to flee the scene.

With these aggravatory factors the presumptive penalty is 20years imprisonment. We do not see why we should go below 20years.

You are therefore sentenced to:

Accused 1 - 20 years' imprisonment

Accused 2 - 20 years' imprisonment

National Prosecuting Authority, state's legal practitioners
Legal Aid Directorate, 1st accused's legal practitioners
Dube, Nkala and Company, 2nd accused's legal practitioners